

The Personal Representative's First 30 Days

A property checklist for Florida estates

Most personal representatives are serving for the first time, often from out of state, often while grieving. These 20 steps protect the estate's largest asset in the first month, before anything is listed or sold.

DAYS 1 - 7

Secure the Property

- ☐ **Locate the original will.** Florida requires the custodian to deposit it with the clerk of court within 10 days of learning of the death.
- ☐ **Engage a Florida probate attorney.** Most formal administrations require one, and the right attorney sets the pace for everything below.
- ☐ **Re-key the home.** Change alarm and garage codes and account for every spare key, including the ones with neighbors and family.
- ☐ **Photograph and video the property and contents.** Walk every room before anything is moved. This is your baseline record as a fiduciary.
- ☐ **Forward the mail and collect packages.** An overflowing mailbox advertises a vacant home to the wrong audience.
- ☐ **Keep the electricity on.** In Florida, air conditioning is mold prevention, not comfort. A dark, sealed, unconditioned house deteriorates fast.
- ☐ **Call the homeowner's insurance carrier this week.** Then read the box below before you hang up.

THE VACANT-HOME INSURANCE TRAP

Most homeowner policies restrict or void coverage once a home sits vacant for 30 to 60 days. A burst pipe, a lightning strike, or a break-in after that window may not be covered at all. Ask the carrier, in writing, how the policy treats vacancy, and price a vacancy endorsement or a vacant-home policy before the window closes. This one call protects the estate's largest asset.

DAYS 8 - 14

Stabilize

- ☐ **Inventory the contents.** Secure jewelry, firearms, documents, and anything a beneficiary will one day ask about.
- ☐ **Do not distribute or discard anything yet.** Even to family, even the small things. Wait for your attorney's green light; contents belong to the estate or the heirs, not to whoever arrives first.
- ☐ **Set the thermostat for humidity control.** Around 78 degrees with the fan on, or run a dehumidifier. Humidity, not heat, is what ruins a closed Florida house.
- ☐ **Arrange lawn and pool service.** Visible neglect invites code violations, complaints, and break-ins.
- ☐ **Notify the HOA.** Keep dues current and sort out gate and amenity access for yourself and your vendors.
- ☐ **Cancel or redirect subscriptions and auto-payments.** Streaming, deliveries, pest control on autopay - redirect what the property needs and cancel what it does not.

DAYS 15 - 30

Prepare the File

- ☐ **Gather the property documents.** Deed, mortgage statement, property tax bill, HOA documents, survey, and the owner's title policy.
- ☐ **Ask your attorney whether the home is protected homestead.** It decides whether the estate or the heirs control and sell the home, and it changes everything downstream.
- ☐ **Ask whether the will grants a power of sale.** Under Fla. Stat. 733.613 it decides whether a sale needs a separate court order.
- ☐ **Order a date-of-death valuation.** The estate needs a documented value as of the date of death for stepped-up basis and the accounting, long before anyone lists.
- ☐ **Budget the monthly carrying cost.** Taxes, insurance, HOA, utilities, and maintenance. Every month of delay has a price; know yours.
- ☐ **Interview agents who work probate files.** Ask how they document pricing and marketing. Do not sign a listing until your authority to sell is confirmed.
- ☐ **Open an estate bank account.** With your attorney's guidance, so every property expense runs through the estate and lands cleanly in the accounting.

COMPLIMENTARY FOR ESTATES AND THEIR ADVISORS

Date-of-death valuation and a net-to-the-estate analysis

We prepare a comp-supported date-of-death market analysis alongside current value, and a net-to-estate projection including your monthly cost of waiting. No cost, no listing obligation. We coordinate directly with the estate's attorney and CPA.

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